

HOUSE No. 4892

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, January 8, 2026.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1128) of Marjorie C. Decker, Carole A. Fiola and others relative to access to treatment for patients with serious mental illnesses, reports recommending that the accompanying bill (House, No. 4892) ought to pass.

For the committee,

JAMES M. MURPHY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act preserving access to treatment for patients with serious mental illnesses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 176O of the General Laws, as appearing in the
2 2022 Official Edition, is hereby amended by inserting therein the following new definition: -

3 “Serious mental illness,” any of the following conditions, as defined by the most recent
4 edition of the Diagnostic and Statistical Manual of Mental Disorders:

- 5 (1) Bipolar disorders, hypomanic, manic, depressive, and mixed.
- 6 (2) Childhood and adolescent depression.
- 7 (3) Major depressive disorders, single episode or recurrent.
- 8 (4) Obsessive-compulsive disorders.
- 9 (5) Paranoid personality disorder and other psychotic disorders.
- 10 (6) Schizo-affective disorders, bipolar or depressive.
- 11 (7) Schizophrenia.

(8) Post-traumatic stress disorder.

SECTION 2. Section 12A of said chapter 176O, as so appearing, is hereby further amended by inserting after subsection (g) the following new subsection:-

(h) Notwithstanding any other provision of law, a carrier or utilization review organization shall not, with respect to a drug approved by the Food and Drug Administration for the treatment of serious mental illness, impose a prior authorization requirement, step therapy protocol, or any other protocol that could restrict or delay the dispensing of the drug.

SECTION 3. Section 8 of chapter 118E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting therein the following new definition: -

i½. “Serious mental illness”, any of the following conditions, as defined by the most recent edition of the Diagnostic and Statistical Manual of Mental Disorders:

(1) Bipolar disorders, hypomanic, manic, depressive, and mixed.

(2) Childhood and adolescent depression.

(3) Major depressive disorders, single episode or recurrent.

(4) Obsessive-compulsive disorders.

(5) Paranoid personality disorder and other psychotic disorders.

(6) Schizo-affective disorders, bipolar or depressive.

(7) Schizophrenia.

(8) Post-traumatic stress disorder.

31 SECTION 4. Section 51A of said chapter 118E of the General Laws, as so appearing, is
32 hereby further amended by inserting after subsection (f) the following new subsection: -

33 (g) Notwithstanding any other provision of law, the division or an entity with which the
34 division contracts to provide or manage health insurance benefits shall not, with respect to a drug
35 approved by the Food and Drug Administration for the treatment of serious mental illness,
36 impose a prior authorization requirement, step therapy protocol, or any other protocol that could
37 restrict or delay the dispensing of the drug.